

Line 1

Case Name: *Deborah Sharpe v. Brian Joseph Chesky et al.*

Case No.: 24CV430182

This is a petition to vacate an arbitration award, filed by petitioner Deborah Sharpe against respondent Airbnb, Inc. (“Airbnb”). Airbnb argues that the petition is untimely under both the Federal Arbitration Act (“FAA”) and the California Arbitration Act (“CAA”), because Sharpe filed it on April 8, 2026, which was 138 days after the November 21, 2025 award was served on her (or 128 days after the December 1, 2025 corrected award was served). The statutory deadline under the FAA is “three months.” (9 U.S.C. § 12.) The deadline under the CAA is “100 days.” (Code Civ. Proc., § 1288.)

The court agrees with Airbnb that the petition is untimely under both the FAA and the CAA, and so it does not need to resolve the parties’ dispute as to which statute applies. In addition, the court does not need to address the parties’ remaining arguments on the merits. Nevertheless, the court will note that even though Sharpe asserts that the arbitrators exceeded their authority, improperly excluded evidence, were fundamentally unfair, and violated public policy, she fails to identify anything in the record to support these conclusory assertions. Instead, based on what she identifies in the record, her basic complaint appears to be that the arbitrators failed to apply the law correctly, but that is not a basis for vacating an arbitration award.

The petition is DENIED as untimely.

Line 3

Case Name: *Maria O. Baltier et al. v. General Motors, LLC*
Case No.: 25CV463924

I. INTRODUCTION

In this action under the Song-Beverly Consumer Warranty Act, defendant General Motors, LLC (“GM”) moves for a judgment on the pleadings as to the fourth and fifth causes of action in the complaint, on the following grounds:

- Both causes of action are time-barred.
- In addition, the fifth cause of action lacks specificity and is barred by the economic loss rule.

(Notice of Motion, p. 2:8-9)

After considering the parties’ submissions, the court denies the motion in its entirety, for the reasons that follow.

II. FACTUAL ALLEGATIONS

On June 20, 2020, plaintiffs Maria Baltier and Carlos Lopez (“Plaintiffs”) purchased a 2020 GMC Sierra 1500 (the “Subject Vehicle”) and entered into a warranty contract with GM, the manufacturer. The warranty covered the Subject Vehicle “bumper-to-bumper,” including the powertrain, emissions, and other aspects. (Complaint, ¶¶ 6,7)

According to Plaintiffs, prior to their purchase of the Subject Vehicle, GM knew that vehicles equipped with an “8-speed” transmission like theirs suffered from one or more defects that could cause hesitation or delayed acceleration, harsh or hard shifting, jerking, shuddering, surging, acceleration, and deceleration (the “Transmission Defect”). GM acquired this knowledge through various sources of information, including pre-production and post-production testing, consumer complaints made exclusively to GM and its network of dealers, aggregate warranty data compiled from GM’s network of dealers, testing conducted by GM in response to consumer complaints, and repair order and parts data received by GM from its network of dealers. (FAC, ¶ 49)

From September 2014 to at least February 2019, GM issued various service bulletins and bulletin updates to its dealers in United States about the Transmission Defect. But GM concealed the defects and did not send the bulletins to its customers. Had Plaintiffs known the Subject Vehicle and its transmission were defective prior to or at the time of sale, they would not have purchased it. (Complaint, ¶¶ 53, 59)

Plaintiffs initiated this action on April 18, 2025, alleging causes of action for (1) Violation of Civil Code section 1793.2, subdivision (d); (2) Violation of Civil Code section 1793.2, subdivision (b); (3) Violation of Civil Code section 1793.2, subdivision (a)(3); (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement – Concealment.